

Baljeet Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 March 2017 · Writ-C No. 11523 of 2017 · **Mandamus refused; apply for permanent disconnection as per Code**

HEADNOTE

Mandamus directing permanent disconnection of supply cannot issue where the consumer has not applied in the prescribed format after depositing the requisite amount under the Electricity Act, 2003 read with the Electricity Supply Code, 2005. The writ was not entertained; the petitioner was left free to make a complete application, to be dealt with strictly as per that law.

FACTUAL SUMMARY

Baljeet Singh sought a High Court direction to disconnect his electricity connection at village Neemka, Police Station Parikshitgarh, Tehsil Mawana, District Meerut. The electricity department submitted that he had not applied for permanent disconnection in the prescribed format after depositing the requisite amount. Counsel for the petitioner accepted that, under the Electricity Act, 2003 read with the Electricity Supply Code, 2005, no complete application had been moved, the petitioner having only filed an application on 9 February 2017.

HOLDING-UNITS

INTERPLAY · UP-2005::permanent-disconnection

permanent disconnection — prescribed application before mandamus

HOLDING

A writ of mandamus directing permanent disconnection of an electricity connection cannot issue where the consumer has not applied in the prescribed format after depositing the requisite amount under the Electricity Act, 2003 (styled in the order as the Electricity Supply Act, 2003) read with the Electricity Supply Code, 2005. The consumer remains free to make a complete application, which must then be dealt with strictly in accordance with that law. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus directing permanent disconnection of supply cannot issue where the consumer has not applied in the prescribed format after depositing the requisite amount under the Electricity Act, 2003 read with the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY CONNECTION OUGHT TO BE PERMANENTLY DISCONNECTED

Writ not entertained on the incomplete application; petitioner left to apply in the prescribed form, to be dealt with as per the Act and Code. ¶ 1